

ELIZABETH II



1964 CHAPTER iii

An Act to extend the benefits of the Customs Annuity and Benevolent Fund; and for other purposes.

[25th March 1964]

WHEREAS—

(1) By the Act 56 George 3 c. lxxiii (in this Act referred to as “the Act of 1816”) provision was made for the making of rules and regulations for the establishment and formation of a fund called “the Customs Annuity and Benevolent Fund” (in this Act referred to as “the Fund”) for the benefit of the widows and children or other relatives of the established officers, clerks or other persons belonging to or employed in the Department of the Customs in England and for regulating the conduct and management of the Fund and for making tables of rates of subscription to and payments out of the Fund and for the alteration of any such rules, regulations and tables of rates of subscription and payments and the making of new and additional rules, regulations and tables:

(2) The Act of 1816 further provided that the said rules, regulations and tables should require the approval of four or more of the Commissioners of the Customs and ratification and confirmation by some judge of either of His Majesty’s Courts of King’s Bench or Common Pleas or a Baron of the Exchequer:

(3) Rules, regulations and tables of rates of subscription to and payments out of the Fund were duly made, approved, ratified and confirmed in pursuance of the provisions of the Act of 1816 and have from time to time been duly altered and new and additional rules, regulations and tables have been duly made, approved, ratified and confirmed in pursuance of those provisions:

(4) In pursuance of the provisions of the Act of 1816 and of the said rules, regulations and tables the Fund was duly established and formed:

59 & 60 Vict.
c. xiv.

(5) By the Customs Annuity and Benevolent Fund Act 1896 the several persons who from time to time should be subscribers to the Fund were constituted a body corporate by the name of "the Customs Annuity and Benevolent Fund Incorporated":

15 & 16 Geo. 6
& 1 Eliz. 2 c. 44

(6) By the Customs and Excise Act 1952 the benefits and advantages arising from membership of the Fund are available to and in respect of the Commissioners of Customs and Excise, all officers of the Commissioners and all persons appointed by the Commissioners to discharge any duty relating to any matter in relation to which the said Commissioners are for the time being required in pursuance of any enactment to perform any duties:

(7) It is expedient that the benefits of the Fund should be extended in manner provided by this Act:

(8) It is expedient that the other provisions contained in this Act be enacted:

(9) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Customs Annuity and Benevolent Fund Act 1964.

Interpretation.

2.—(1) In this Act unless the subject or context otherwise requires—

"the Act of 1816" means the Act 56 George 3 c. lxxiii intituled "An Act for establishing and regulating a Fund for the Widows, Children and Relatives of Officers or Persons belonging to the Department of Customs in England";

“ the existing enactments ” means the unrepealed provisions of the enactments mentioned in the schedule to this Act;

“ the Fund ” means the Customs Annuity and Benevolent Fund established and formed in pursuance of the Act of 1816;

“ the rules ” means the rules, regulations and tables of rates of subscription to and payments out of the Fund for the time being in force.

(2) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

3. Notwithstanding anything contained in the existing enactments the rules may provide for payments out of the Fund to be made during the lifetime of a subscriber to the Fund, to the subscriber or to the wife, children or other relatives or nominees of the subscriber or to any one or more of them. Extension of purposes of Fund.

4. The costs, charges and expenses preliminary to and of and incidental to the preparation, obtaining and passing of this Act or otherwise in relation thereto shall be paid out of the Fund. Costs of Act.

SCHEDULE

THE EXISTING ENACTMENTS

The Act of 1816.

Section 285 of the Customs Consolidation Act 1876.

The Customs Annuity and Benevolent Fund Act 1896.

Subsection (3) of Section 2 of the Customs and Excise Act 1952.

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